

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MOSES, DAMISA,	)	
	)	
Complainant,	)	
	)	DOCKET NO.:
v.	)	
	)	<u>1967(F)</u>
TRANS ATLANTIC SHIPPING, LLC	)	
	)	
Respondent.	)	

MOTION TO DISMISS WITHOUT PREJUDICE

COMES NOW Complainant MOSES DAMISA (“Complainant”) by and through his undersigned counsel and moves this Court to dismiss his Complaint filed on December 2, 2020, against Respondent TRANS ATLANTIC SHIPPING, LLC. Complainant asks to dismiss his Complaint without prejudice so he can file a new Complaint in state court. As set forth below, such relief should be granted by the Federal Maritime Commission (hereinafter “FMC”).

LEGAL ANALYSIS

Pursuant to Rule 41 of the Federal Rules of Civil Procedure, “Once an answer is filed by an adverse party, an action may not be dismissed at plaintiff’s instance without order of the Court and upon such terms and condition as the Court deems proper.” Fed. R. Civ. P. 41(a)(2). However, courts have held that it is “ordinarily proper to grant a motion to dismiss unless the defendant will suffer some plain legal prejudice beyond the mere prospect of a second lawsuit.” *Durham v. Florida East Coast Ry. Co.*, 385 F.2d 366, 368 (5th Cir. 1967).

The case most analogous to our case is the *Fleming v. Joy Finance Co.*, 1995 U.S. Dist. LEXIS 19106 (E.D. La 1995). In the *Fleming* matter, Plaintiff sought to have the case dismissed without prejudice so that he could pursue his claims in state court after having filed first for relief

in federal district court pursuant to the Jones Act and general maritime law provisions. *Id.* The Fleming Court held that, “absent a showing that granting plaintiff’s motion will cause undue prejudice, such as that a defense available to the defendant would be unavailable in state court, or that plaintiff was simply trying to circumvent as expected result, it must grant plaintiff’s motion for voluntary dismissal. *Romero v. Universal Ogden Servs.*, 1997 U.S. Dist. LEXIS 16380 (E.D. La. 1997)(citing *In re Fleming* at *2). Furthermore, Courts have found that the mere fact plaintiff may obtain some tactical advantage over the defendant in future state court litigation is ordinarily not a sufficient reason to bar dismissal. *Ikospentakis v. Thalassic Steamship Agency*, 915 F.2d 176 (5th Cir. 1990).

This Court should grant Complainant’s request to voluntarily dismiss this action and refile in state court. Like the *Fleming* case, there is no undue prejudice caused to the Respondent by Complainant’s dismissal or if this matter is refiled in state court. Furthermore, there is no defenses available to Respondent in this Court that will be barred in Georgia state court. Thus, the Court must grant Complainant’s request to voluntarily dismiss the instant action.

This 26th day of July 2021.

Respectfully submitted,
THRIFT MCLEMORE

/s/ Matthew P. Collins

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CERTIFICATE OF SERVICE

The undersigned counsel hereby certifies that the within and foregoing **Motion to Dismiss** as well as the Proposed **Order Granting Complainant's Motion to Dismiss** has been served upon all parties via email to wit:

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This 26th day of July 2021.

Respectfully submitted,
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